

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: June 09, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
<u>LINES 1-2</u>	25CV469591	Nathan Pope vs Jonathan Drake et al	Demurrer (Line #1) and Motion for Stay (Line #2) OFF CALENDAR as WITHDRAWN. On June 4, 2026, counsel for Plaintiff Nathan Pope, California Department of Transportation, Greystar, Sobrato et al, SI LLC, ECC, LLC and Underground Republic appeared in Department 1 at 11 a.m. for a mediation status hearing. No appearances were made on behalf of Jonathan Drake and Amber Drake. At the hearing, counsel indicated mediation had not commenced as several new parties appeared in the case. Parties also received notice that the moving party had requested to vacate the June 9 hearing given the case status. On May 29, 2026, moving parties/Defendant Jonathan Drake and Amber Drake filed a motion to continue the Demurrer (Line #1) and Motion to Stay (Line #2). On April 17, 2026, Jonthan Drake filed a motion to stay (totaling 18 pages), the motion was accompanied by a proof of service indicating email service to the plaintiff on that same day. Defendant Underground filed opposition papers to the motion to stay (totaling 7 pages). On April 30, 2026, Amber Drake filed a demurrer the plaintiff's Second Amended Complaint ("SAC")(totaling 23 pages) that was accompanied by proof of service on March 6, 2026. On March 3, 2026, the Honorable Shella Deen issued an order, pursuant to stipulation, allowing the plaintiffs to file a Third Amendment Complaint ("TAC"), but also stated, "In the event Plaintiffs are unable or do not file a [TAC], ... Plaintiffs' prayer for punitive damages against Defendants is stricken from Plaintiffs' [SAC]." Plaintiffs did not file a TAC.

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LAW AND MOTION TENTATIVE RULINGS

			On March 6, 2026, Plaintiffs filed a DOE Amendment substituting defendant Amber Drake for Doe Defendant #1. The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 27, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Based on the foregoing, the demurrer and motion to stay is OFF CALENDAR at parties request.
<u>LINE 3</u>	26CV492170	California Civil Rights Department vs Arcadia Management Services Co.	Application Defendant Chang filed this demurrer to the complaint on September 5, 2025, the motion was accompanied by a proof of service indicating electronic service to the plaintiff on that same day. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 21, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). Based on the foregoing, the Court SUSTAINS the demurrer. Moving party to prepare the formal Order.